

1 October 2026

The Industrial Registrar
Queensland Industrial Relations Commission
qirc.registry@qirc.qld.gov.au
Attention: Chambers of Commissioner Dwyer

Copy: Ms Renee Matheson, Senior Appeals Officer, Workers' Compensation Regulator
(Renee.Matheson@oir.qld.gov.au)

WC/2024/227 - Cory Lea Shepherd v Workers' Compensation Regulator

Direction 5 election; application for leave to file a proposed Second Amended Statement of Facts and Contentions (Form 9A); status of the documents

Direction 5. Under direction 5 of the Further Directions Order (3) of 19 August 2026, the Appellant elects a further conference under section 552A of the *Workers' Compensation and Rehabilitation Act 2003*, and asks that the application below be dealt with at or before it. This election is made on 1 October 2026, the day after the time for the Respondent's list of witnesses, outlines of evidence and expert reports under directions 3 and 4 expired.

The application. The Appellant was an Administration Officer on the Logan Hospital Switchboard; the Respondent admits that maintaining accurate contact details for medical staff is a critical function of the Switchboard to ensure effective clinical handover and patient safety (fact 289). The Appellant applies for leave under section 451(2) of the *Industrial Relations Act 2016* to file and serve the proposed Second Amended Statement of Facts and Contentions (Form 9A) enclosed for the Commission's consideration. A copy is provided to the Respondent with this letter and its consent is sought. Since the Amended Form 9A of 7 April 2026, the Respondent has admitted, to the extent recorded in its response of 8 September 2026, **298 of the 303 facts** in the Appellant's notice of 28 August 2026, and has admitted or since confirmed **29 of the 39 documents** behind them. The amendment is sought because **the facts have since been largely settled by those admissions**. It reorganises the pleading around the admitted record rather than changing the case, so that the issues left for hearing are narrower: whether each circumstance was management action, whether any management action was reasonable and taken in a reasonable way, and causation. The proposed amendment accepts that **the onus of proof is on the Appellant**, withdraws the descriptions of conduct used in the earlier pleading, and **adds no new stressor or allegation**. **No hearing date has been set**. The Appellant does not oppose the Respondent having time to amend its own statement of facts and contentions if leave is granted. The Appellant's list of witnesses filed, and outlines of evidence served, on 9 September 2026 are not amended and stand as filed and served.

How the proposed Form 9A is arranged. Each of the three stressors is pleaded so that it can be read and assessed on its own facts. An admitted fact is repeated where necessary to keep each stressor's sequence complete and to show the different part it plays there; read together, the three stressors show the whole course of employment circumstances relied on. Under each stressor, the list of stressors identifies the individual events relied on as causes; the other particulars are context, or the employer's record of how the matters were handled. The treating records are used for what was recorded clinically about that course and its effect, not to prove a disputed workplace event.

The Respondent's notified case as at 30 September 2026. (1) Its review decision of 24 October 2024 found that the Appellant sustained a personal injury of a psychological nature, arising out of employment to the extent it arose out of factors 2, 3 and 4, where **employment was a significant contributing factor** (facts 261 and 262); the claim was rejected under section 32(5). (2) Paragraph 27 of its amended statement of facts and contentions, which contends that any management action was reasonable management action taken in a reasonable way, **does not identify the management action relied upon**; that was admitted on 8 September 2026 (fact 303). That admission concerns paragraph 27; it does not dispose of the more specific explanations pleaded elsewhere in the Respondent's statement. (3) It has **named no medical or expert witness and served no expert report**: its list of 24 September 2026 names four witnesses, Ms Taylor, Ms Reese, Ms Wright and Ms Earl, described as "lay" witnesses, and it served outlines of their evidence. (4) Its outlines of

evidence state that the seven-hour break of 17 to 18 March 2024 was **"the result of human error"** and, on the advice returned within payroll, "a rostering practice issue for the line manager"; and that the second decline of the paid Special Pandemic Leave request **"appears to have been made in error"**. **Its outlines give no account of the dated events at Stressor 1(b), 1(f), 1(h) and 1(k):** the removal of database access, the 15 April 2024 process change, the misdirected calls, and the directory error reported by the Integrated Respiratory Service. The Appellant asks that, at the opening of the conference, the Respondent be asked to state its position on paragraph 27 in light of those matters: whether it maintains it, will particularise it, or seeks time (items 2 and 5 of the election).

The record, available on request. The notices to admit, the Respondent's responses of 8 September 2026 and the underlying documents were served between the parties and are available to the Commission in the form the Registry directs.

The documents. Part 1 of the schedule on the following pages states the status of each of the 39 documents at Annexure A to the notices of 28 August 2026; Part 2 lists the other documents the pleading relies on; Part 3 indexes the dated particulars of the proposed Second Amended Form 9A and adds no stressor. The Appellant asks that the Respondent be directed, by a date fixed by the Commission, to state whether it maintains its dispute as to the authenticity of each of the ten outstanding documents and, for each dispute maintained, particularise the ground on which authenticity is disputed; that any dispute not so maintained cease to be in issue; and that the Appellant have liberty to apply in relation to any authenticity dispute remaining after that date. No direction as to relevance, weight or admissibility is presently sought.

Filing position. The Appellant asks that the election and this letter be filed and placed before Commissioner Dwyer. The proposed Second Amended Form 9A is enclosed only for the Commission's consideration of the application for leave and is **not presently submitted for filing**. If leave is granted, the Appellant will supply a hard copy of the Form 9A to the Registry and will file and serve it in the form directed by the Commission or Registry.

This letter accompanies the Appellant's election and requested directions. Enclosure for consideration: proposed Second Amended Statement of Facts and Contentions (Form 9A).

A handwritten signature in black ink, consisting of a large, stylized 'C' followed by a series of loops and a long horizontal stroke extending to the right.

Cory Lea Shepherd, Appellant (self-represented)

Schedule, Part 1: the 39 documents at Annexure A (notices to admit served 28 August 2026) and their status

The 39 documents at Annexure A to the notices to admit served 28 August 2026 are the documents from which the facts in Part B of the proposed Second Amended Form 9A are drawn. On 8 September 2026 the Respondent admitted the authenticity of 25 of them and disputed 14. By email of 24 September 2026 it confirmed four of the 14 "upon further review of the appeal file", stated that it had "requested copies of these documents to be disclosed from MSH" for nine others, and did not mention the fourteenth. The facts recorded in 13 of the 14 were admitted on 8 September 2026 to the extent set out in Part B; the exception is the register at Tab 31, from which facts 228 to 231 were not admitted. For the other 13, what remains in dispute is the authenticity of the copies, not their content.

Tab	Document	Date	8 Sep 2026	24 Sep 2026	Position now
1A	Stibbard to the Switchboard team, "Hello & Update"	18 Jul 2023, 12:56 pm	Admitted	-	Admitted; tender
1B	Taylor to Reese, "Fwd: Communication Book Update", with her email to Logan Switch of 9:57 am that day	6 Jun 2023, 4:05 pm	Admitted	-	Admitted; tender
2	"Increase of hours and Workplace issues" chain and Reese's replies	7-10 Aug 2023	Admitted	-	Admitted; tender
3	Reese attaching HR Policy E12; emails of 4 and 8 Sep 2023	29 Aug-8 Sep 2023	Admitted	-	Admitted; tender
4	"Request to Increase Working Hours to Full Time Rotational Roster"; emails of 7 Aug 2023 1:43 pm and 5:11 pm	7 and 31 Aug 2023	Admitted	-	Admitted; tender
7	"Roster Concerns" chain	26 Apr-8 May 2024	Admitted	-	Admitted; tender
8	Reese to Pritchard "FW: Roster Concerns"; Reese to LBH_HR attaching qh-gdl-401-3.3	10 and 20 May 2024	Admitted	-	Admitted; tender
8A	Cover page, Fatigue risk management systems implementation guideline QH-GDL-401-3.3:2021	2021	Admitted	-	Admitted; tender
8B	MASPER emails (Taylor to Kwok and Wong; "MASPER process") and issue logs	9 May 2024 (logs 2-8 May)	Admitted	-	Admitted; tender
8C	Stibbard, "Switchboard After Hours On Call Manager PP24"	13 May 2024, 4:29 pm	Admitted	-	Admitted; tender
9	Taylor, "Switchboard Manager - On call and Hours."	17 May 2024, 9:30 am	Admitted	-	Admitted; tender
9A	"Office Hours and Departmental Directives" chain (1:15 pm, 6:23 pm, 7:09 pm)	15 May 2024	Admitted	-	Admitted; tender

Tab	Document	Date	8 Sep 2026	24 Sep 2026	Position now
9B	Reese, "RE: Office Hours and Departmental Directives"	21 May 2024, 2:53 pm	Admitted	-	Admitted; tender
10	Taylor, "Sick leave 14.05.24", and its forwarding to Reese	14-15 May 2024 (first email 14 May, 12:08 pm)	Admitted	-	Admitted; tender
11	Marriott (Integrated Respiratory Service) to Logan Switch; the Appellant to Taylor; Taylor's reply	15 and 20 May 2024	Admitted	-	Admitted; tender
12	"Corey Shepherd 388372 Pay issues" thread	3-13 May 2024	Admitted	-	Admitted; tender
13	Same thread, Taylor to the Appellant	21 May 2024, 12:33 pm	Admitted	-	Admitted; tender
14	Taylor, "Validation of Claims older than 3 months - Please sign"	28 May 2024, 8:36 am	Admitted	-	Admitted; tender
15	myHR submissions report (MSH Item 11)	1 Feb-31 May 2024	Admitted	-	Admitted; tender
16	QH Leave Takings Report (MSH Item 15)	19 Mar 2024	Admitted	-	Admitted; tender
25	Review Decision 69983	24 Oct 2024	Admitted	-	Admitted; tender
26	Appellant's first notice to admit facts	before 18 Feb 2026	Admitted	-	Admitted; tender
27	Respondent's response to that notice	18 Feb 2026	Admitted	-	Admitted; tender
28	myHR leave request history, Process Reference 15480560 (MSH Item 11)	20 Feb-1 Mar 2024	Admitted	-	Admitted; tender
29	Instrument of Human Resource Sub-Delegation, Paid Special Pandemic Leave (MSH Item 13)	eff. 5 Dec 2022	Admitted	-	Admitted; tender
6	Taylor, "Afterhours Oncall Process - Switchboard" (Stressor 1(f))	15 Apr 2024, 12:39 pm	Disputed	Confirmed by the Respondent	Now admitted; tender
20	Metro South to Commissioner Dwyer, K-LM26/729, signed by the Chief Executive (supporting records under Stressors 1 and 3)	5 Jun 2026	Disputed	Confirmed by the Respondent	Now admitted; tender
30	Taylor, "What's Chloe's Hours?!" (Stressor 1(d))	23 Aug 2023, 2:18 pm	Disputed	Confirmed by the Respondent	Now admitted; tender
30A	Taylor, "Good morning Team." (Stressor 1, supporting records)	18 Jun 2024, 8:58 am	Disputed	Confirmed by the Respondent	Now admitted; tender

Tab	Document	Date	8 Sep 2026	24 Sep 2026	Position now
1	Role description, Administration Officer, Switchboard Services (AO3), Logan Hospital	undated	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (facts 1-13)
5	Taylor, "Approved - Permanent Full Time FTE"	27 Sep 2023, 1:52 pm	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (37-38)
17	Movement form, approved by Mr Hughes as delegate, recording "Continuous Shift Worker"	27 Feb 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (14-15)
18	Movement form, approved by Mr Hughes, recording "Continuous Shift Worker"	17 Apr 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (14-15)
19	Movement form, approved by Mr Hughes, recording "Continuous Shift Worker"	9 Jun 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (14-15)
21	Forrest, Senior Consultant Human Resources, to the Appellant, stating that the 8-hour agreement "is only applied where staff initiated shift swaps have occurred"	7 Jul 2026	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (224-225)
22	Consultation Paper, Proposed Rosters for Switchboard Services, signed by Mr Hughes 12 Nov 2024	Nov 2024	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (169-175)
23	Consultation outcome, Proposed Rosters, signed by Mr Hughes 12 Dec 2024	Dec 2024	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; contents admitted (167-168, 176-177)
31	Screen capture, "2024 Emergency Code Register.xlsx", March 2024 sheet, entries 16-20 Mar 2024 (Stressors 3(b) and 3(c))	Mar 2024	Disputed	Referred by the Respondent to Metro South for copies	Outstanding; facts 228-231 not admitted
24	Moran, Organiser, Together Queensland, to Jeffrey, Conaghan and the Appellant, "Switchboard Roster Feedback - For Delegates"	3 Nov 2025	Disputed	Not mentioned	Outstanding; contents admitted (178-179)

The Appellant asked the Respondent on 9 September 2026 to confirm the ten outstanding documents; the Respondent's email of 24 September 2026 gives no date by which the copies are expected. The copies of Tabs 1, 5, 17 to 19, 21 to 24 and 31 came from the Appellant's own records; Tabs 17 to 19, 22 and 23 bear

the signature of the employer's Director, Corporate Services. Tab 24 is a Together Queensland document, which the email of 24 September 2026 does not address.

Schedule, Part 2: other documents relied on in the proposed Second Amended Form 9A that are not at Annexure A

Document	Relied on at	Status or source
The Respondent's outlines of the evidence of Ms Taylor, Ms Reese, Ms Wright and Ms Earl	1(l), 2(n) to 2(o), 3(c); Stressor 3 agreement and pleaded-answer paragraphs; Part C, paragraph 5A	Served by the Respondent on 24 September 2026; available to the Commission on request. An outline is not evidence.
The spreadsheet of recorded MET calls for 17 and 18 March 2024	Stressor 3(b)	Metro South Health states that it is available [¶ 268].
The Logan Hospital emergency code procedures referred to in the role description	Stressor 3, the emergency-code context	Referred to in the role description [¶ 8] (Tab 1).
The documents recording the advice of Human Resources on the 8-hour agreement	Referred to in the outlines (first row)	The outlines of Ms Taylor and Ms Reese refer to them; neither identifies them.
The Communication Book	Stressor 1(a); Part B.5.4	Not listed in the Respondent's amended List of Documents of 14 August 2026; paragraph 154 of the notice was not admitted.
The Respondent's disclosure of July 2025 headed "Disclosure from witness conferencing - Qld Health Payroll" (24 pages): the email of Ms Christensen, Manager Service Delivery, Payroll, to the Respondent of 11 July 2025, and Payslips 01 to 07, including Payslip 06 (pay date 5 June 2024) and Payslip 07 (pay date 2 July 2025)	2(n) to 2(o); Part B.4	Disclosed by the Respondent in July 2025.
The Respondent's disclosure of 11 June 2026 (10 pages): the leave-form walkthrough for Process Reference 15480560, the emails of 15 May 2024 at 1:15 pm and 6:23 pm, and documents concerning the complaint of 13 May 2024	Stressors 1(e) and 1(l); for 1(i), the date of the complaint only	Disclosed by the Respondent on 11 June 2026.
Queensland Health's Code Blue procedure 001443 (Royal Brisbane and Women's Hospital, version 5, April 2020)	Stressor 3, the emergency-code context: the types of Code Blue and the role of Switchboard Services	Public document.
The Queensland Ombudsman's Neville Report (June 2006) and its 2011 update, and the Coroner's findings of 12 September 2008	Stressor 3, the framework history: the origin of the fatigue framework	Public documents.

Document	Relied on at	Status or source
The monthly call statistics for April 2025	Stressor 1, the operating conditions; Stressor 3(b), the ordinary-call-load paragraph	The Appellant's own record and evidence (Part B preamble).
Queensland Health Fatigue Risk Management Systems Implementation Guideline QH-GDL-401-3.3:2021 (the full disclosed guideline)	Stressor 3(h) and the supporting fatigue records; the quotations from the guideline	Disclosed in full with the 20 May 2024 email chain on 14 July 2025. Tab 8A at Annexure A is the cover page only.

Schedule, Part 3: index of the dated particulars in the proposed Second Amended Form 9A (index only; not additional stressors). The three stressors are pleaded, with their particulars, in the proposed Second Amended Form 9A; this index adds no stressor or particular. The causal particulars are 1(b), 1(d), 1(f) to 1(h), 1(k) and 1(l); 2(a) to 2(i), 2(l) and 2(m); and 3(b) to 3(f); they are also listed, with their dates and descriptions, under each stressor in the list of stressors in the proposed Second Amended Form 9A. Particulars 1(a), 1(c), 1(e), 1(i), 1(j), 2(j) and 3(a) are context. Particulars 2(k), 2(n), 2(o), 3(g) and 3(h) are the record of how the matters were handled and when the corrections were made; they are relied on as proof, not as separate causes.

No.	Date or date range	Particular	Brief description
1(a)	on or around 6 June 2023	Removal of the Communication Book entry	Entry removed and management response recorded; context only.
1(b)	18 July 2023 to 18 June 2024	Database access and the restricted correction process	Operators lost access; amendments were channelled through specified staff.
1(c)	7 August to 16 October 2023	Roster concerns and the move to full time	Roster error, responses and application for increased hours; context only.
1(d)	23 August 2023 to 17 May 2024	Notification of variable office hours	Variable hours were stated; no intervening statement of fixed hours is alleged.
1(e)	20 February to 1 March 2024	Pandemic leave submissions	Two declines and three submissions; context here and entitlement issue in 2(b).
1(f)	15 April 2024	After hours on call process changed	New process was stated to take effect that day.
1(g)	19 April 2024	Data entry process changed	The review decision records a new checking process following data entry errors.
1(h)	2 to 9 May 2024	Misdirected calls and the MASPER response	Two reports recorded nine occasions before a revised process was communicated.
1(i)	13 May 2024	The complaint of 13 May 2024	Date of the complaint; chronology only, with no causal allegation.

No.	Date or date range	Particular	Brief description
1(j)	13 to 15 May 2024	On-call roster and absence notification instructions	Roster circulated on the first day of the fortnight it covered; notification of unavailability channelled through the manager from 14 May; context only.
1(k)	15 to 20 May 2024	Respiratory directory error and requests for correction	Repeated requests, the Appellant's escalation and management reply.
1(l)	15 to 21 May 2024	Office hours request and the retraction response	Request for clarity, retraction request, hours clarification and follow-up.
2(a)	9 February 2024	Seven hours recorded instead of eight	The fortnight beginning 5 February was topped up from the RDO balance.
2(b)	20 February to 1 March 2024	Processing of paid pandemic leave	Three submissions and two declines before final approval.
2(c)	28 February 2024	Second shift recorded as seven hours	The fortnight beginning 19 February was also topped up from the RDO balance.
2(d)	fortnight beginning 18 March 2024	Overtime recorded as ordinary shifts	Payroll identified too many ordinary shifts and a need for overtime coding.
2(e)	30 March 2024	Public holiday claim submitted late	Payroll later described the 30 March public holiday claim as submitted late; relied on as Payroll's later account, not as an admission.
2(f)	fortnight beginning 1 April 2024	Hours above the contracted fortnight	Payroll identified a further requirement for overtime coding.
2(g)	8 April to 1 May 2024	Pay enquiry and public holiday review	Enquiry, acknowledgment, follow-up and response; public holiday review remained open.
2(h)	3 May 2024	Payroll directed four fortnight corrections	Payroll directed the manager to submit an AVAC for each affected fortnight.
2(i)	10 to 13 May 2024	Follow-up found no correction	The Appellant followed up; Payroll referred him back to the line manager.
2(j)	15 to 16 May 2024	A completed AVAC recorded	Process 16328886 was submitted on 15 May and completed on 16 May; context only.
2(k)	20 May 2024	HR follow-up about rostering	The Director followed up with HR and attached the fatigue guideline; record only.
2(l)	21 May 2024	Manager awaited Payroll confirmation	The manager said she was still waiting for confirmation.

No.	Date or date range	Particular	Brief description
2(m)	28 to 30 May 2024	Validation request and partly completed AVAC	Validation sought; process 16450619 was recorded as "Part Completed".
2(n)	5 June 2024	Three corrections reached a payslip	Payroll identified adjustments for 28 February, 30 March and 1 April; record of when corrected.
2(o)	30 June to 2 July 2025	Later correction of the 9 February shift	Payroll identified a later amendment and pay date; record of when corrected.
3(a)	7 August to 4 September 2023	Earlier roster error and proposed roster	Rest was offered after an acknowledged error; the Appellant proposed increased hours; context only.
3(b)	17 to 18 March 2024	Consecutive shifts and the seven-hour break	Rostered interval, travel, rest and workload relied on in their operational context.
3(c)	19 March 2024	Sick leave after the consecutive shifts	The record shows 7.60 hours of approved sick leave; the fatigue entitlement is disputed.
3(d)	8 April to 1 May 2024	Fatigue enquiry and refusal	Acknowledged on 9 April; substantive response and refusal after 23 days.
3(e)	16 to 26 April 2024	Roster line error and proposed alternatives	Error acknowledged after the meeting; no subsequent contact about alternatives is alleged.
3(f)	1 to 8 May 2024	Fatigue toolkit raised and HR advice awaited	The Appellant sought action on the toolkit; the Director said she was awaiting advice.
3(g)	10 May 2024	Risk rating and roster decision recorded	The Director recorded his fatigue concerns, a moderate rating and an undisclosed roster decision; internal record.
3(h)	20 May 2024	HR follow-up with the fatigue guideline	The Director followed up her earlier query and attached the guideline; internal record.